

Courtroom Clerk's Session
Add On 2

22. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trials the hearing on the demurrer calendared for Line 23. The Parties are ordered to appear via zoom. If the tentative ruling for line 23 is not contested, then no appearance is required on April 22, 2026 and this CMC is continued to October 20, 2026 at 8:30 a.m. The Parties are ordered to file a case management conference statement and to appear via Zoom.

Law & Motion
Add On 2

23. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE

FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by real parties in interest KB Home South Bay, Inc. and Trumark Homes to the first amended verified petition for writ of mandate. Respondent City of San Ramon filed and served a joinder in the demurrer by the real parties in interest on January 27, 2026, and the hearing on the joinder was set for August 12, 2026. The Court hereby **advances** the hearing on the City's joinder to be heard concurrently with the demurrer. For the reasons set forth, the demurrer by real parties in interest and the joinder by Respondent City motion are **overruled**.

Background

In the operative first amended verified petition for writ of mandate ("FAP"), petitioner Brian Swanson, AIPC, challenges approvals by the Planning Commission for the City of San Ramon of amendments regarding amendments to two development projects. First, on October 21, 2025, the Planning Commission adopted Resolution Number 12-25 to approve applications by Trumark for a Development Plan Amendment (DPA 2025-0005) and Minor Exception (MX 2025-0003) for the Bishop Ranch 11 ("BR-11") Project. (FAP, ¶¶ 1, 25, Exh. A-1.) Second, on November 4, 2025, the Planning Commission adopted Resolution Number 14-25 to approve applications by KB Home for a Development Plan Amendment (DPA 2025-0007) and Minor Exception (MX 2025-0005) for the

Bartlett Bishop Ranch 7 ("BR-7") Project. (FAP, ¶¶ 1, 28, Exh. A-2.) The City filed a Notice of Determination for Trumark project BR-11 on October 23, 2025 and for the KB Home project BR-7 on November 5, 2025, and Swanson filed his initial petition commencing this case on November 24, 2025.

The Court will address Petitioner's allegations regarding his exhaustion of administrative remedies or excuse for lack of exhaustion below in the context of the analysis of the grounds for demurrer by the RPs. As to the merits of Petitioner's claims, Petitioner alleges generally that in late 2023, the City of San Ramon certified a General Plan 2040 Environmental Impact Report ("EIR"), adopted a Mitigation Monitoring and Reporting Program, and adopted findings and a Statement of Overriding Conditions. (FAP ¶ 21.) In May 2025, the City adopted a resolution reducing the maximum floor area ratio for the area zoned downtown mixed use – north, thereby lowering the "intensity standards" for that downtown district. (FAP ¶ 22.) In October 2025, shortly before the Notice of Determination of the amendment to the BR-11 project, the City adopted an ordinance which he alleges amended Title D of the SRMC by expanding administrative and discretionary means for reducing on-site parking requirements, including for downtown San Ramon. (FAP ¶ 23.)

The crux of Petitioner's claim is alleged in paragraph 24 of the FAP. "As a result of these actions, the regulatory environment and intensity framework governing downtown San Ramon—including DMU-N FAR and parking standards—changed between the certification of the GP 2040 EIR and the late-2025 approvals for BR 11 and BR 7. Nonetheless, for each project the City relied on the GP 2040 EIR and did not prepare a subsequent or supplemental EIR, subsequent mitigated negative declaration, or other CEQA document addressing these changed circumstances. (Public Resources Code, § 21166; Guidelines, §§ 15162–15164.)" (FAP ¶ 24.)

Based on these general allegations, and other factual allegations regarding the amendments to the two projects, Petitioner alleges (1) a first cause of action for failure to proceed as required by law based on the City's alleged improper reliance on the General Plan 2040 Prior EIR without subsequent or supplemental review, (2) a second cause of action for failure to proceed as required by law based on the City's alleged inadequate project-level and cumulative impact analysis and inadequate VMT/Transportation analysis, (3) a third cause of action for inadequate mitigation and monitoring of significant environmental impacts and unlawful deferral of mitigation measures, (4) a fourth cause of action based on the City's findings being unsupported by substantial evidence and lacking analytical support, and (5) a fifth cause of action for failure to proceed in the manner required by law based on the absence of, or lack of disclosure of, local CEQA procedures and CEQA appeal structure and fees. The FAP names the City of San Ramon as the Respondent, and Trumark and KB Home as the real parties in interest. (Trumark and KB Home as the real parties in interest are sometimes collectively referred to as the "Demurring Parties" or the "RPs" in this ruling.)

City of San Ramon Joinder

The City of San Ramon filed and served a joinder in the demurrer by the RPs. The joinder is one substantive page and essentially adopts and concurs in the arguments and authorities presented by the RPs in their demurrer. The City appeared at the April 15, 2026 initial hearing on the demurrer, a hearing which the Court continued to this date with the concurrence of all parties as the Court did not become aware of Petitioner's opposition and the reply until too late for the Court to prepare a

tentative ruling for the April 15, 2026 hearing. The Court finds good cause under the circumstances in the interests of the parties and judicial efficiency to advance the hearing on the City's joinder from August 12, 2026 to the date of the hearing on the demurrer by the RPs, as the demurrer raises the substantive arguments the City has adopted as its own, and Petitioner has responded to those arguments in his opposition.

Legal Standards for Ruling on Demurrer

In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.) In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the FAP, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the FAP states a claim for relief, the Court gives the FAP "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Save Lafayette Trees v. East Bay Regional Park District* (2021) 66 Cal.App.5th 21, 29.) (*See also Evans v. City of Berkeley, supra*, 38 Cal.4th at 6 [" "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]"].)

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.) The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 [" 'With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional" prerequisite to judicial consideration of the claim.' [Citation omitted, emphasis added.]"].)

Demurring Parties' and Petitioner's Requests for Judicial Notice

Demurring Parties ask the Court to take judicial notice of Title D - Zoning of the San Ramon Municipal Code ("SRMC"). (RPs RJN Exh. 1.) The Court **grants** the unopposed request. (Evid. Code § 452(b).)

Petitioner asks the Court to take judicial notice of (1) the October 21, 2025 City of San Ramon Planning 54 Commission meeting agenda, and specifically the appeal notice language on page 1; (2) the November 4, 2025 City of San Ramon Planning Commission meeting agenda, and specifically the appeal notice language on page 1; (3) the City of San Ramon City Clerk "Zoning Appeal"/appeal instructions webpage; (4) City of San Ramon fee resolution/master fee schedule 65 excerpt reflecting the \$4,500 appeal deposit line for appeals from Planning Commission decisions, and (5) portions of the SRMC Zoning Ordinance concerning appeals from Planning Commission decisions to the City Council, specifically sections D6-14, D7-8, D7-9, D7-10, D7-11, D7-12, D7-13, and D7-14. (Petr. RJN Exhs. 1-5.) The Court **grants** the unopposed request. (Evid. Code §§ 452(b) and (c).)

Procedural Note on Late-Filed Opposition

Petitioner's opposition to the demurrer was filed April 6, 2026, four days late for the April 15, 2026 hearing date. Petitioner filed a written request for consideration of the late opposition, explaining he made a calendaring error. RPs filed a reply on the merits responding to the opposition arguments. The Court in its discretion accepted Petitioner's late opposition at the April 15, 2026 hearing and continued the hearing to the present date of April 22, 2026. (*Rancho Mirage Homeowners Association v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [court has discretion to consider late brief].)

Analysis

Real Parties in Interest Trumark and KB Home contend the Court has no jurisdiction over the subject of the first through fifth causes of action of the FAP because they contend Petitioner failed to exhaust his administrative remedies before seeking judicial review, and Petitioner has not alleged facts sufficient to excuse his failure to exhaust his administrative remedies. (Code Civ. Proc. § 430.10(a).) For the same reasons, they contend the first through fifth causes of action fail to allege facts sufficient to state causes of action. (Code Civ. Proc. § 430.10(e).)

Petitioner contends (1) the City appeal provisions of the SRMC are unclear essentially because they do not clearly indicate they apply to decisions by the Planning Commission in matters subject to CEQA; (2) the "availability, clarity, and adequacy of" of the appeal remedy is a factual dispute that cannot be resolved at the pleading stage; (3) the \$4,500 deposit fees required for appealing each of the decisions "are unusually high and impose a significant barrier when multiple approvals are involved," citing FAP ¶¶ 17(b)–(c), 19, and 63; and (4) "any additional City-level appeal requirement . . . would have been futile or inadequate to provide a meaningful remedy, particularly given the absence of clear CEQA procedures and the economic barrier," citing FAP ¶¶ 18–19, 63–65.

A. Legal Backdrop Regarding Exhaustion of Administrative Remedies, Excuse, and Futility

The California Supreme Court explained the exhaustion of administrative remedies doctrine and the policies underlying the doctrine in *Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072 as follows: "In general, a party must exhaust administrative remedies before resorting to the courts. [Citations omitted.] Under this rule, an administrative remedy is exhausted only upon 'termination of all available, nonduplicative administrative review procedures.' [Citations omitted.] [¶] 'The exhaustion doctrine is principally grounded on concerns favoring administrative autonomy (i.e., courts should not interfere with an agency determination until the agency has reached a final decision) and judicial efficiency (i.e., overworked courts should decline to intervene in an administrative dispute unless absolutely necessary).' [Citations omitted.] The exhaustion requirement applies to defenses as well as to claims for affirmative relief [citations omitted], and we have described exhaustion of administrative remedies as 'a jurisdictional prerequisite to resort to the courts' [citations omitted]." (*Id.* at 1080.)

Another court explained some of the policies supporting the doctrine and its jurisdictional nature: " 'The requirement of exhaustion of administrative remedy is founded on the theory that the administrative tribunal is created by law to adjudicate the issue sought to be presented to the court, and the issue is within its special jurisdiction. If a court allows a suit to go forward prior to a final administrative determination, it will be interfering with the subject matter of another tribunal.' [Citation omitted.] Consequently, the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion. [Citation omitted.]" (*Tahoe Vista Concerned Citizens v. County of Placer*

(2000) 81 Cal. App. 4th 577, 589.)

"Section 21177 addresses the exhaustion of administrative remedies in CEQA cases, but it does not prescribe a specific appeal process following a determination a project is exempt from CEQA. Instead CEQA requires that if a nonelected official or decisionmaking body determines a project is exempt from CEQA, the agency must allow for an appeal of that determination to the agency's elected decisionmaking body. (§ 21151, subd. (c).) The Guidelines also provide the 'local lead agency may establish procedures governing such appeals.' (Guidelines, § 15061, subd. (e).)" (*McCann v. City of San Diego* (2021) 70 Cal. App. 5th 51, 76.) (*See also Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 492-493 [CEQA does not preempt local administrative process; it contemplate local agencies establishing their own procedures, rejecting petitioner's claim he was excused from exhausting local appeal procedure based on argument regarding city's "regulatory morass" and that CEQA preempted the local procedures].)

"Several cases recognize that when an agency elects to adopt an administrative appeal process, the common law rule requiring the exhaustion of administrative remedies applies to CEQA litigation and the scope of the remedy is 'determined by the procedures applicable to the public agency in question.' [Citation omitted.] Thus, 'whether the exhaustion doctrine applies depends on the relevant procedures available in a specific jurisdiction.' [Citation omitted.] Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination. [Citation omitted.]" (*McCann, supra*, 60 Cal.App.5th at 77 [emphasis added].)

There are exceptions to the exhaustion requirement, including futility which is one exception Petitioner alleges in the FAP. " 'The futility exception requires that the party invoking the exception "can positively state that the [agency] has declared what its ruling will be on a particular case." ' [Citations omitted.]" (*Coachella Valley Mosquito & Vector Control Dist., supra*, 35 Cal.4th at 1080-1081.) The futility exception is a narrow one. (*Steinhart v. County of Los Angeles* (2010) 47 Cal. 4th 1298, 1313.) It "applies only if the party invoking it can positively state that the administrative agency has declared what its ruling will be in a particular case. [Citation omitted.]" (*Id.* at 1313-1314.) It requires proof that when the appeal would have been submitted to the City Council in this case, the City Council had "predetermined its position." (*Id.* at 1314 [rejecting argument that the position the County took in a subsequent court action alone was a basis for invoking the futility exception].)

B. Summary of Relevant Appeal Provisions of Zoning Ordinance and Notices to Public of Appeal Rights

Petitioner alleges that the decisions by the Planning Commission that he seeks to challenge in this action were characterized by the City as "minor" amendments to previously approved projects subject to a certified EIR that the Planning Commission. The City concluded the minor amendments did not require subsequent or supplemental environmental review, as the Planning Commission found there was no change in parking made by the amendments. (FAP ¶¶ 1, 2.)

Title D of the SRMC is the Zoning Ordinance. The table of contents describing the different divisions of the Zoning Ordinance indicates that Division 7 addresses "Zoning Ordinance Administration." The Division headings make it clear the Zoning Ordinance covers all manner of issues involving land uses and zoning. The concept of "land uses" by its terms is broad; nothing suggests it would not cover land

uses where CEQA may apply. Division 7's title is not limited to "zoning administration" but rather by its terms applies to the administration of the "Zoning Ordinance." The Court finds nothing ambiguous about the heading of Chapter II in Division D7 "Zoning Ordinance Administration" "Appeals and Calls for Review." (*See also, for example*, D1-5(A) under Rules of Interpretation ["Any official interpretation by the Director or Planning Commission shall be available for public review upon request and may be appealed pursuant to Division D7, Chapter 2"], D2-3(a)(3)(d), D4-32(f), D5-12(A) and (C), D6-18(a)(2) and (6)(c), among approximately 15 sections referring to appeals pursuant to D7, Chapter II].) Division D7 also has a chapter regarding public hearings (Chapter IV) which includes a number of references to CEQA specifically, all under the umbrella of Division D7 Zoning Ordinance Administration, with the hearings clearly related to the substantive matters governed by the prior provisions of the Zoning Ordinance.

Regarding the right to appeal decisions by the Planning Commission, Petitioner acknowledges the first page of each of the Planning Commission agendas for the October 21, 2025 and November 4, 2025 hearings includes a notice regarding the right to appeal decisions by the Commission. The October 21, 2025 agenda explains the public's right to appeal as follows: "If you challenge in Court any zoning or planning actions taken by the Planning Commission, you may be limited to raising only those issues you or someone else raised at the public hearing conducted herein or in written correspondence delivered to the Planning Commission at or prior to the public hearing. Decisions of the Planning Commission may be appealed within 10 (ten) calendar days of decision by filing a letter stating the grounds for the appeal along with the appropriate filing fee in the City Clerk's office." (Petr. RJN Exh. 1, p. 1 [emphasis added].) The November 4, 2025 agenda has identical language regarding the right to appeal. (Petr. RJN Exh. 2, p. 1.) The fee for filing an appeal of a Planning Commission decision is \$4,500. (Petr. RJN Exhs. 3, 4.)

Both Petitioner and Demurring Parties direct the Court to the appeal provisions of title D of the SRMC. Section D7-8(A)(2) provides that "Decisions made by the [Planning] Commission may be appealed to the [City] Council." Any interested party may file an appeal. (SRMC § D7-9.) The appeal "shall be initiated within 10 calendar days of the date of the decision." (SRMC § D7-10.) SRMC Section D7-11(A) describes the method of taking an appeal, which requires the appeal to be filed with the City Clerk accompanied by the applicable filing fee. SRMC Section D7-11 explains that the filing of a timely appeal stays the decision appealed from "until a final decision on the matter has been rendered by the appropriate review authority." (SRMC § D7-11(C).)

C. Application of Exhaustion Doctrine to Petitioner and the FAP

It is undisputed that Petitioner did not appeal the decisions of the Planning Commission subject to this lawsuit to the City Council. The FAP does not allege that he appealed, only that he filed this lawsuit after the Planning Commission's decisions.

Petitioner contends in effect he did not have to pursue an appeal to the City Council because there was "no clearly disclosed CEQA-specific appeal path" as the appeal provisions in the SRMC are "framed as zoning/planning actions." (Opp. p. 6, ll. 151-152 [emphasis added].) (*See also* FAP ¶ 17.a. [no "CEQA-specific appeal process or fee structure . . . separate from land-use, planning, or zoning appeals."]; FAP ¶ 17.b. [fee schedule for an appeal not "CEQA-specific appeal framework"]; FAP ¶ 63 [appeals are framed "in terms of zoning and land-use decisions under San Ramon Municipal Code

section D7-8 and do not separately identify any CEQA-focused appeal mechanism or fee."].)

Petitioner, however, fails to cite any legal authority that requires the City to create a CEQA-specific set of appeal procedures and fee schedules, or any authority that holds appeal procedures in a municipal code applicable to any or all zoning and land use decisions made by the City do not encompass appeals of zoning and land use decisions that are subject to CEQA, or decisions which an objecting member of the public contends should be subject to CEQA. The exhaustion doctrine under the authorities cited above requires that a party pursue any available avenue of public agency appeal first before seeking the intervention of the Courts.

The decision in *Tahoe Vista Concerned Citizens* addressed a failure to specify issues subject to a petitioner's appeal of a planning commission decision to the Board of Supervisors pursuant to the provisions of the Placer County Code. The Court applied the exhaustion doctrine to issues not identified in its appeal based on the provisions of the Placer County Code. (*Id.* at 591-592 ["The Placer County Code allows persons who appear at a Planning Commission hearing to appeal the Planning Commission's decision to the Board of Supervisors. The Placer County Code describes the scope of the appeal hearing as follows: 'At the hearing (a hearing conducted "over again"), the appellate body shall initiate a discussion limited to only those issues that are the specific subject of the appeal, and, in addition, the specific grounds for the appeal. . . . ' [Citation omitted.] [¶] These procedures thus provided plaintiffs with an appeal from the Planning Commission's decision, but required plaintiffs to specify the particular subject or grounds of the appeal," holding "a failure to raise an issue in an administrative appeal after raising the issue in the first public or administrative hearing constitutes a failure to exhaust administrative remedies and prevents the issue from being raised in a subsequent judicial action. [Citation omitted.]"]].)

In *Tahoe Vista Concerned Citizens*, the Court cites and relies in part on *Park Area Neighbors v. Town of Fairfax* (1994) 29 Cal.App.4th 1442. (See *Tahoe Vista Concerned Citizens*, *supra*, 81 Cal.App.4th at 591.) The Fairfax Town Code provided for "appeal of a planning commission action to the town council." (*Park Area Neighbors*, *supra*, 29 Cal.App.4th at 1448.) The Court in *Park Area Neighbors* held the petitioner's failure to appeal the decision of the Planning Commission approving a hillside development project, including related permits and variances over which the Planning Commission had authority to decide, meant the petitioners had not exhausted their administrative remedies as to those approvals, and the petition challenging them could not be considered by the Court. (*Park Area Neighbors*, *supra*, 81 Cal.App.4th at 1445, 1450 [holding that the "complete failure of PAN's [petitioner's] members to assert any challenge before the planning commission or town council to the project's compliance with density ordinances, the applicability of the adjustment exclusion and the lack of a resolution on traffic study methodology, or to appeal the planning commission's actions in the manner prescribed by the town code, precludes the assertion of those challenges in this judicial proceeding." (Emphasis added.)]). Neither *Tahoe Vista Concerned Citizens* nor *Park Area Neighbors* suggests that the applicable local codes involved in those cases had CEQA-specific procedures for appeal of planning commission decisions rather than appeal procedures generally applicable to any decision by the planning commission.

Another decision cited by RPs similarly involves a petitioner's failure to appeal a decision by the planning commission of a town. The Court explained, "Section 18.58.030 of the Corte Madera Municipal Code provides, generally, for an appeal to the town council from any action taken by the

planning commission. Section 18.46.070 specifically provides for an appeal to the council from action taken by the planning commission upon an application for a conditional use permit. Section 18.46.070, with which section 18.58.030 is substantially identical in pertinent terms, states: 'Within ten days following the date of a decision of the planning commission . . . , the decision may be appealed to the town council by the applicant *or by any other interested party.*' " (*Environmental Law Fund, Inc. v. Town of Corte Madera* (1975) 49 Cal. App. 3d 105, 111 [italics in original, underscoring added].) The SRMC contains similar language, applicable to appeals of any decision by the Planning Commission and not limited to ones not involving a claim that CEQA is in some way implicated in the decision being appealed. Unlike the petitioners in the *Corte Madera* case, Petitioner has alleged that he was informed of the public hearings before the Planning Commission because he participated in those hearings, making comments and objections to the approval of the amendments to the projects in connection before the Planning Commission approval. (FAP ¶¶ 7, 16, 64.) (See also Petn. RJN Exhs. 1, 2 [Planning Comm. Agendas with notice of appeal rights].) The *Corte Madera* decision also supports that the exhaustion of administrative remedies doctrine applies and bars Petitioner's pursuit of this action for failure to appeal the Planning Commission's decisions to the City Council under the SRMC.

Petitioner cites Public Resources Code section 21082 and Guidelines section 15022 in support of his argument that the general administrative appeal process provided in the SRMC was not adequate and that CEQA-specific procedures for appeal were required. Neither supports Petitioner's position.

Public Resources Code section 21082 states: "All public agencies shall adopt by ordinance, resolution, rule, or regulation, objectives, criteria, and procedures for the evaluation of projects and the preparation of environmental impact reports and negative declarations pursuant to this division." It says nothing about appeal procedures from the decisions by the local body evaluating the project and the application of CEQA. Guidelines section 15022 similarly provides, "Each public agency shall adopt objectives, criteria, and specific procedures consistent with CEQA and these Guidelines for administering its responsibilities under CEQA, including the orderly evaluation of projects and preparation of environmental documents." (14 C.C.R. § 15022(a).) The list of implementing procedures that a local agency should adopt does not refer to any appeal procedures, including any appeal procedures specific to CEQA. (*Id.*)

Another provision of the Guidelines specifically addressing appeals from a determination that a project is exempt from CEQA exists, but the provision does not help Petitioner, as nothing in the Guideline indicates that the local agency's generally applicable appeal procedures for land use decisions may not govern such an appeal: "When a non-elected official or decisionmaking body of a local lead agency decides that a project is exempt from CEQA, and the public agency approves or determines to carry out the project, the decision that the project is exempt may be appealed to the local lead agency's elected decisionmaking body, if one exists. A local lead agency may establish procedures governing such appeals." (14 C.C.R. 15061(e).)

While Petitioner contends the SRMC does not clearly state that the appeal procedures apply to land use and zoning decisions which may involve CEQA determinations, the provisions for appeal on their face apply to any decisions by the Planning Commission. The Planning Commission agendas advised the public that an appeal may be made from the decisions made by that body and that there was a ten-day deadline to appeal, as Petitioner concedes. The FAP alleges implicitly the SRMC provides a general avenue of appeal from Planning Commission decisions, which was stated in the public notice

on the first page of the Planning Commission hearing agendas, and in the cited sections of the SRMC. Nothing in the SRMC limits the right to appeal a Planning Commission decision to decisions in which CEQA is not involved. Indeed, CEQA can be theoretically pertinent to any land use or zoning decision implicitly as this case illustrates. Petitioner is challenging the Planning Commission's determination that the amendments to BR-11 and BR-7 were "minor" and did not require further review or analysis under CEQA. (FAP ¶¶ 2, 25, 26, 28.)

Petitioner had an administrative remedy and failed to exhaust it regarding both of the decisions subject to this action. (*McCann, supra*, 60 Cal.App.5th at 77 ["Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination. [Citation omitted.]"].) That Petitioner may not have been aware of or may not have understood his obligation to pursue the right to appeal decisions of the Planning Commission to the City Council in instances where CEQA is in some manner at issue does not mean that he is excused from compliance with the exhaustion requirement. (*Ventura29 LLC v. City of San Buenaventura* (2023) 87 Cal.App.5th 1028, 1041-1042 [holding demurrer to complaint in condemnation action properly sustained for lack of exhaustion of administrative remedies, rejecting petitioner's arguments that his lack of knowledge of the right to appeal and city's failure to inform him of right to appeal excused it from exhaustion requirement].) Petitioner has not cited any authority that a party's lack of knowledge or understanding of the available appeal procedures excuses exhaustion.

D. Application of Futility Exception

As to the futility exception, the facts alleged in the FAP do not show that the City Council had predetermined its position on any appeal of the Planning Commission's decisions subject to this action. Petitioner cites only a November 25, 2025 comment by the mayor, who is only one member of the City Council, regarding appeals of a Planning Commission decision in general as part of a discussion on appeal fees. Petitioner alleges that, "During the November 25, 2025 appeal-fee discussion, the Mayor stated, in substance, that if a resident cannot obtain support from a councilmember to bring an issue forward, 'the odds of a successful appeal [are] probably not going to be great anyway' (Exhibit E-5 [November 25, 2025 Mayor comments])." (FAP ¶ 17.d. and Exh. E-5.) Petitioner further alleges, "This statement underscores that the City's discretionary appeal process is both politically driven and unlikely to provide meaningful CEQA relief." (FAP ¶ 17.d.) These allegations as a matter of law fail to allege facts sufficient to meet the futility exception to the exhaustion doctrine under the authorities cited above, both because they are general statements about appeals not addressed to the specific project approvals in question, and they post-dated the deadline for filing appeals of both of the project approvals challenged in the FAP.

E. Inadequacy of Remedy Exception to Exhaustion Doctrine and "Excessive" Fee

Another exception to the exhaustion of administrative remedies doctrine is that the doctrine does not apply when the administrative remedy is inadequate. (*Ventura29 LLC, supra*, 87 Cal. App. 5th at 1038.) Petitioner argues that he is excused from compliance with the exhaustion requirement of appealing the Planning Commission's decisions to the City Council because the City's appeal fees are excessive, an amount which he alleges is a deposit of \$4,500 per appeal.

RPs argue that the City is allowed to charge fees for an appeal, citing *Friends of Glendora v. City of*

Glendora (2010) 182 Cal.App.4th 573. In that case, the Court of Appeal rejected the appellant's legal argument that the local agency was precluded from charging a fee for an appeal claiming a violation of CEQA. (*Id.* at 580 ["In deference to the mandate of section 21083.1, we decline to interpret CEQA as requiring that agencies such as the City waive any and all of their customary fees for filing administrative appeals of decisions, simply because the appeal is based on CEQA."].) However, the Court stated that appellant in that case specifically did not raise a challenge to the amount of the fee. (*Id.*) Here, Petitioner has made that challenge.

RPs contend in their reply that the California Supreme Court addressed a similar argument in *Sea & Sage Audubon Society, Inc. v. Planning Commission of the City of Anaheim* (1983) 34 Cal.3d 412. In that case, involving the Subdivision Map Act and approval of a proposed subdivision on that statutory scheme, the petitioner argued that it should be excused from its failure to exhaust administrative remedies because the amount of the appeal fee was arbitrary and excessive. (*Id.* at 419– 422.) The fee in that case was \$607. The issue of the reasonableness of the appeal fee was raised by plaintiffs for the first time on appeal from an order granting the defendants' motion for summary judgment. The Court rejected the plaintiffs' claim that the reasonableness of the fee was purely a question of law that could be resolved on appeal though not raised below. The Court stated:

Although plaintiffs characterize the question of the validity of the fee as purely a question of law, it is plain that the "reasonableness" of a particular fee under section 66451.2 cannot properly be resolved in the abstract. Without an evidentiary record, we cannot determine either (1) the full range or nature of the administrative services and functions which are properly covered by the fee, (2) the reasonable cost of such services and functions, or (3) whether the fee structure in question bears a reasonable relationship to such costs. While plaintiffs assert that the fee at issue is arbitrary on its face, in the absence of relevant factual data we are in no position to determine whether the \$607 figure is excessive or whether a fee schedule under which the amount of the fee varies with the size of the proposed development is necessarily "unreasonable" as a matter of law. Because plaintiffs did not pursue this claim below, neither the city nor Anaheim Hills was afforded an opportunity to present relevant factual evidence to support the fee. Indeed, given the presumption of validity traditionally accorded to legislative acts, it is plaintiffs – rather than the city or Anaheim Hills -- who bore the initial burden of presenting a prima facie evidentiary showing as to the invalidity of the fee. Having failed to make any such showing, plaintiffs cannot challenge the reasonableness of the fee for the first time on appeal.

(*Id.* at 421-422 [emphasis added].)

RPs argue that Petitioner failed to preserve the issue for appeal because he did not try to file his appeal without the fee or file the appeal and pay the fee under protest. Neither of the decisions cited by RPs in their reply indicate that either option was required for the excuse from the exhaustion requirement on this ground to be preserved and asserted in the FAP. (See *Sea & Sage Audubon*

Society, supra, 34 Cal.3d at 416, 421-422 [petitioner's appeal filing was rejected for lack of payment of the fee, but unreasonableness of amount not considered as raised for the first time on appeal]; *but see Friends of Glendora, supra*, 182 Cal.App.4th at 574 [fee paid under protest].)

Petitioner alleges that the City's "appeal-deposit requirements are unusually high compared to many California jurisdictions and impose a significant financial barrier to residents and community members seeking to challenge CEQA determinations, particularly when multiple project approvals are involved." (FAP ¶ 17.c.) He alleges the \$4,500 per project deposit is not a reasonable fee for review where CEQA is involved. (FAP ¶ 18.) Petitioner also alleges that "the City's appeal-fee structure renders such appeals economically prohibitive, particularly when multiplied across separate project approvals," and that "[t]he City's appeal-fee structure is not calibrated to CEQA environmental review, is unusually high, and discourages public use of any purported 'appeal' process that might exist." (FAP ¶¶ 19(b) and 34 [emphasis added].) He alleges that the appeal procedures and the fee deposit for an appeal "create a significant economic and procedural barrier for residents seeking to obtain CEQA review of BR 11 and BR 7 and tend to favor large, well-capitalized downtown landholders and their successor developers over individual community members." (FAP ¶ 63.) Reasonably construing the FAP, Petitioner is alleging that one of the grounds on which he is excused from compliance with the exhaustion requirement is because the fee imposed to file an appeal of each decision is excessive and unreasonable and renders the appeal remedy provided in the Zoning Ordinance inadequate and ineffective as an administrative remedy. (FAP ¶¶ 5, 17.c., 18, 19(b), 34, 63.)

RP's contend that even if he alleges the excessive fee as a basis for excuse from compliance with the exhaustion requirement (which he does in the FAP), the FAP does not allege "facts showing that the City's appeal fee exceeds the estimated reasonable cost of providing the services for which the fee is charged." Petitioner does more than merely allege the appeal fee is "excessive" and "unusual," characterizations that alone are not facts showing the fees are unreasonable or outside the bounds of costs the City could reasonably expect to incur to address appeals from the Planning Commission. (See *Sea & Sage Audubon Society, supra*, 34 Cal.3d at 421-422 [suggesting additional facts may need to address the reasonable cost of administrative services covered by the fee, and whether the fee amount bears a reasonable relationship to the cost of those services].) Petitioner has alleged other facts, summarized above, including that "[t]hese appeal-deposit requirements are unusually high compared to many California jurisdictions," that the fees are so high they "impose a significant financial barrier to residents and community members seeking to challenge CEQA determinations, particularly when multiple project approvals are involved," and that they are unreasonable and "not calibrated to CEQA environmental review." (FAP ¶ 17.c., 19(b), 34, and 63.) The FAP alleges sufficient facts, accepted as true on demurrer, to implicate the "inadequate remedy" exception to the exhaustion requirement based on the excessive appeal fees which cannot be determined as a matter of law from the allegations of the FAP alone.